

		As of September 23, 2026, Moving Counsel has not filed the proof of service and proposed order. The Court orders clerk to give notice.
115	Solouki v. Saint-Gobain Performance Plastics, 2025-01507443	MOTION TO BE RELIEVED AS COUNSEL – GRANTED Gloria Tumanyan (“Moving Attorney”) moves to be relieved as counsel of record for plaintiff Tony Solouki. The motion is unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. All other requirements have been satisfied. Thus, the motion is GRANTED. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
116	Unlimited Transport v. Anderson, 2025-01483349	CASE MANAGEMENT CONFERENCE – CONTINUED TO 1:30 p.m.
117	Zamora v. King, 2025-01469527	DEMURRER TO AMENDED COMPLAINT – SUSTAINED WITH 20 DAYS LEAVE TO AMEND Defendant, COURY & BUEHLER PHYSICAL THERAPY, INC. (CBPT) seeks an order sustaining its demurrer to the 2nd cause of action of the first amended complaint (FAC), for negligent misrepresentation. Demurrer is sustained with 20 days leave to amend. Absent extraordinary circumstances, no further leave to amend will be granted. The elements of negligent misrepresentation are (1) a misrepresentation of a past or existing material fact, (2) made without reasonable ground for believing it to be true, (3) made with the intent to induce another's reliance on the fact misrepresented, (4) justifiable

	reliance on the misrepresentation, and (5) resulting damage. (Wells Fargo Bank, N.A. v. FSI, Financial Solutions, Inc. (2011) 196 Cal.App.4th 1559, 1573.) To plead a claim for fraud by affirmative misrepresentation, the plaintiff must “state facts which show how, when, where, to whom, and by what means the representations were tendered.” (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1060.) Plaintiff argues the following facts are sufficient to constitute a cause of action for negligent misrepresentation. On October 25, 2022, Dr. Steve Kang of Defendant OSI surgically repaired Plaintiff's ruptured left Achilles tendon. (FAC ¶¶ 2-3, 13.) On January 4, 2023, Dr. Kang determined Plaintiff was ready for physical therapy and "could gradually transition out of the boot," and referred him to CBPT. (FAC ¶ 17.) On January 9, 2023, CBPT's Michael Vu, PTLA, evaluated Plaintiff and set his plan of care, and Plaintiff thereafter received physical therapy at CBPT. (FAC ¶¶ 18, 27, 34, 37.) In or around May 2023, Dr. Kang encountered Plaintiff in the waiting area of CBPT's physical therapy office with his leg still immobilized in the walking boot. Dr. Kang "was surprised," told Plaintiff that "he had been immobilized far too long," and, for the first time, instructed him to remove the boot "to prevent persistent and possibly irreversible atrophy." (FAC ¶ 21.) Plaintiff then "raised the issue with CBPT and they assured him that there was no problem or risk of atrophy and his recovery would continue over the next 12-18 months." (FAC ¶ 22.) Despite the recommended recovery period and consistent physical therapy, Plaintiff experienced little to no improvement; he cannot run, jump, or walk with a normal gait, and "[j]ust as Dr. Kang predicted, the atrophy appears to be permanent." (FAC ¶ 23.) Plaintiff was never advised by CBPT of the risks of prolonged immobilization. (FAC ¶¶ 24, 29.) Plaintiff argues that the “Who” is identified in the FAC as CBPT, acting through its treating physical therapist, Michael Vu, PTLA, who evaluated Plaintiff on January
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	9, 2023, set his plan of care, and treated him thereafter. (FAC ¶¶ 18, 37.) However as argued in Defendant’s reply, Michael Vu is mentioned by name only one time in paragraph 18 wherein it states that on January 9, 2023, BEFORE any alleged misrepresentations were made, Mr. Vu was the physical therapist who initially treated the plaintiff. Nowhere does plaintiff allege that Michael Vu, PTLA, made any misrepresentations at the January 9, 2023 appointment. Moreover, Plaintiff fails to indicate when he “raised the issue with CBPT”, nor does he indicate who “they” are at CBPT who “assured him that there was no problem or risk of atrophy.” Perhaps more importantly, it is unclear what the misrepresentation was in terms of the boot. Is Plaintiff suggesting CBPT misrepresented that there was no problem or risk of atrophy for the past use of the boot? Or, is he suggesting that CBPT assured him that there was no problem or risk of atrophy in remaining in the boot moving forward. It is totally unclear. (See FAC ¶¶ 8, 21, 22) Defendant to give notice.
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